

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS AND THINGS (SET TWO) AS AGAINST PLAINTIFF, AS HEIR AND SII TO ALEX POLLARD, AND FOR MONETARY SANCTIONS**

FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC

TENTATIVE RULING:

This tentative ruling applies to lines 14, and 16 which are the two discovery motions filed by Defendant San Pablo Healthcare and Wellness Center LLC dba San Pablo Healthcare and Wellness Center ("Defendant") against Plaintiff Lynetta Westbrook ("Plaintiff") calendared for hearing on March 4, 2026. Because no timely oppositions to each of these motions were filed with the Court, each of these motions are **granted** in their entirety. No appearance is required on March 4, 2026.

Background

Defendant filed the following discovery motions:

1. September 8, 2025: Defendant's Motion to Compel Responses to Request for Production of Documents and Things (Set Two) as Against Plaintiff as Heir and Successor in Interest to Alex Pollard and for Monetary Sanctions in the amount of \$1,522.95 for reasonable costs and attorney's fees.
2. November 17, 2025 Motion for Orders 1) Deeming Admitted Truth of Facts as to Plaintiff and 2) Imposing Monetary Sanctions totaling \$1,772.95.

These two motions were supported by Notice, Memoranda of Points and Authorities, Separate Statement (where required for the Motion to Compel Further Responses), Declarations of Counsel Valerie A. Kraml, and proposed orders lodged with the Court. The proofs of service for each motion evidence service of each by e-mail to Plaintiff's Counsel of Record, Dawn M. Smith. No timely responses were received from Plaintiff.

Analyses

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing is February 17, 2026. No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United*

Airlines, Inc. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.];

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See the court's website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Plaintiff's failure to timely oppose Defendant's Motions is a deemed to be her consent to the granting of all three motions.

Ruling

The Court grants the following motions and their respective sanctions:

1. September 8, 2025: Defendant's Motion to Compel Responses to Request for Production of Documents and Things (Set Two) as Against Plaintiff as Heir and Successor in Interest to Alex Pollard and for Monetary Sanctions in the amount of \$1,522.95 for reasonable costs and attorney's fees. The Court will execute the proposed order lodged on September 16, 2025.
2. November 17, 2025 Motion for Orders 1) Deeming Admitted Truth of Facts as to Plaintiff and 2) Imposing Monetary Sanctions totaling \$1,772.95. The Court will execute the proposed order lodged on November 17, 2025.
3. Sanctions shall be paid no later than ten (10) days from the date of the hearing.

15. 9:01 AM CASE NUMBER: C25-00221

CASE NAME: GRAVES CONSTRUCTION GROUP SERVICES, INC. VS. ELITE MD, INC., A CALIFORNIA CORPORATION

***HEARING ON MOTION FOR DISCOVERY COMPEL ELITE MD, INC. FURTHER RESPONSES TO SPECIAL INTERROGATORIES. SET ONE**

FILED BY: GRAVES CONSTRUCTION GROUP SERVICES, INC.

TENTATIVE RULING:

Summary

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One, is **moot**, as set forth herein. Plaintiff's request for sanctions are **granted**.

Background

This case involves a claim by Plaintiff for breach of contract regarding certain tenant improvements.